

		that were not recoverable as a matter of right under Code of Civil Procedure section 1032. As the court pointed out, the cost memorandum applies only to ‘cost items to which a party is entitled “as a matter of right” ’ ” (<i>Neeble-Diamond v. Hotel California By the Sea, LLC</i> (2024) 99 Cal.App.5th 551, 557-558.) Here, all costs are discretionary and dependent on the Court finding frivolousness. Thus, all costs cannot be claimed in a memorandum of costs and must be claimed through a motion. Therefore, Defendants’ memorandum of costs is taxed in its entirety because the clerk lacks authority to award any costs.
5	23-01330456 <i>Hayes vs. Dennis Horton Construction Worker’s Tax Service</i>	Motion to Compel Answers to Form Interrogatories Judgment Creditor Jacqueline Martinez’s Motion to Compel Responses to Judgment Debtor Interrogatories, Set One, is GRANTED. Legal standard A judgment creditor may propound written interrogatories to the judgment debtor in the manner provided by Code of Civil Procedure section 2030.030. (Code Civ. Proc., §§ 708.010, 708.020.) The interrogatories may be enforced in the same manner as interrogatories in a civil action. (Code Civ. Proc., § 708.020, subd. (c).) Code of Civil Procedure section 2030.290, provides, in part: “If a party to whom interrogatories are directed fails to serve a timely response, . . . the party propounding the interrogatories may move for an order compelling response to the interrogatories.” The failure to serve a timely response also waives any objections to the requests. (Code Civ. Proc., § 2030.290, subd. (a).) Section 2030.290, subdivision (c) further provides the court “shall” impose a monetary sanction against any party “who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” On 12/12/25, Judgment Creditor served Judgment Debtor Interrogatories, Set One, on Judgment Debtor. (Cohen Decl., ¶ 9, Ex. G.) After not having received timely responses, Judgment Creditor’s counsel followed up with Judgment Debtor’s counsel on 1/14/26 and 1/15/26 but did not receive a response. (Cohen Decl., ¶¶ 11, 13, Exs. H, I.) Counsel followed up again on 1/16/26 and Judgment Debtor’s counsel stated he would provide the responses “next week.” (Cohen Decl., ¶¶ 14, 15, Ex. J.) After not having received responses, Judgment Creditor’s counsel followed up on 1/19/26 and 1/20/26 and on 1/20/26 Judgment Debtor’s counsel stated he would provide responses “in the next 48 hours or sooner.” (Cohen Decl., ¶¶ 16, 17, Exs. K, L.) No responses were provided. (Cohen Decl., ¶ 17.)

		Accordingly, the Court GRANTS Judgment Creditor Jacqueline Martinez's Motion to Compel Responses to Judgment Debtor Interrogatories, Set One. Judgment Debtor shall serve Code-compliant responses, without objections, within 30 days of this order. (Code Civ. Proc., § 2030.290, subds. (a), (b).) Judgment Creditor's request for sanctions against Plaintiff is granted in the reduced amount of \$1,375.00, payable within 30 days. (Code Civ. Proc., § 2030.290, subd. (c).)
6	24-01445819 <i>Hovarter vs. Borski</i>	1) Motion to Compel Production 2) Motion to Compel Production MOTION NO. 1 – MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE AND PRODUCTION OF DOCUMENTS, AND FOR MONETARY SANCTIONS Plaintiff Trevor Hovarter's Motion Compel Responses to Requests for Production, Set One (RFP), and Production of Documents, and for Monetary Sanctions as to Defendant Loren Borski is CONTINUED to [REDACTED]/26 at 10:00 a.m. in Department C33. While the parties refer to Defendant's verified Amended Supplemental Responses to RFPs served on 6/9/26, neither party attaches a copy of those responses. Defendant is ORDERED to file a copy of Defendant's verified Amended Supplemental Responses to the first set of RFPs served on 6/9/26 at least nine (9) court days before the continued hearing. No further briefing will be permitted. MOTION NO. 2 – MOTION TO COMPEL COMPLIANCE WITH RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, AND FOR MONETARY SANCTIONS Plaintiff Trevor Hovarter's Motion Compel Compliance with Responses to Requests for Production of Documents, Set One, and for Monetary Sanctions as to Defendant Loren Borski is CONTINUED to [REDACTED]/26 at 10:00 a.m. in Department C33. While the parties refer to Defendant's verified Amended Supplemental Responses to RFPs served on 6/9/26, neither party attaches a copy of those responses. Defendant is ORDERED to file a copy of Defendant's verified Amended Supplemental Responses to the first set of RFPs